

SENATE No. 120

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve providing for an investigation by a special commission relative to the feasibility of a diaper allowance.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 120

By Mr. DiDomenico, a petition (accompanied by resolve, Senate, No. 120) of Sal N. DiDomenico that provisions be made for an investigation and study by a special commission (including members of the General Court) relative to the feasibility of a diaper allowance. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve providing for an investigation by a special commission relative to the feasibility of a diaper allowance.

1 **Resolved**, that a special commission is hereby established to study the feasibility and
2 costs associated with establishing and distributing an annual allowance to be used to purchase
3 diapers for recipients of the Transitional Aid to Families with Dependent Children (TAFDC)
4 program with diaper-wearing children. The commission shall study and assess the method used
5 to deliver the current clothing allowance as a model for a diaper allowance and the costs
6 involved in delivering a diaper allowance by establishing a diaper need related increase in the
7 Need and Payment Standards specified in 106 CMR 704.410 and 106 CMR 704.420.

8 Resolved, that the commission shall make recommendations to address the feasibility of
9 providing such a benefit and include in their study: (i) the number of children under the age of
10 two years six months who live in households receiving TAFDC, as a basis for understanding the
11 prioritized population, (ii) the average number of daily diapers used by diaper-wearing children,
12 as determined by the national diaper bank network, (iii) the cost burden to families to purchase
13 diapers, (iv) the proposed amount of diapers that would be needed to meet the need per child, (v)

14 projected costs, including administrative, technical and technological costs, that may be needed
15 to implement such an allowance, and (vi) recommendations for legislation, regulation or budget
16 appropriations as needed.

17 Resolved, the special commission shall consist of: 1 person who shall be the
18 commissioner of the department of transitional assistance or a designee, who shall serve as chair;
19 1 of whom shall be the commissioner of the department of public health or a designee, 1 of
20 whom shall be the deputy commissioner for policy and programs of the department of
21 transitional assistance, 1 of whom shall be the director of the WIC program, 1 of whom shall be a
22 member of the Massachusetts chapter of the American academy of pediatrics, 1 of whom shall be
23 a representative of the national diaper bank network, 1 of whom shall be the executive director of
24 the Massachusetts Association for Community Action, 1 of whom shall be the executive director
25 of the Massachusetts law reform institute, 1 of whom shall be the commissioner or designee of
26 the department of early education and care, 1 of whom shall be a representative of the
27 Massachusetts child psychiatry access project for moms, and 2 of whom shall be the co-chairs of
28 the joint committee on children, families, and persons with disabilities.

29 Within twelve months of enactment, the department shall report to the clerks of the house
30 of representatives and senate, the chairs of the joint committees on children, families and persons
31 with disabilities; and the chairs of the joint committee on public health.